

ORDINANCE NO. _____

ENTITLED: "ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LOT 14, BLOCK 5, HOMESTEAD ADDITION, FIRST FILING REPLAT, SITUATED IN THE N ½ NE ¼ SECTION 4, T.13N., R.66W., 6th P.M., LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF HOMESTEAD AVENUE, NORTH OF THE CHEYENNE GREENWAY)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Leader Custom Homes, LLC, owner of Lot 14, Block 5, Replat Homestead Addition, First Filing, Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MR Medium-density Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published: _____

STAFF REPORT - SUMMATION

Lot 14, Block 5, Replat Homestead Addition, First Filing Annexation

CASE NUMBER:	UDC-18-00069	SUBDIVISION CODE:	HAN 01
PREPARED BY:	Eric Hammer / Seth Lloyd		
MEETING DATES:	April 9, 2018 – City Council	1 st Reading/ Public Hearing	
	April 17, 2018 – Public Services Committee	1 st Reading	
	April 23, 2018 – City Council	2 nd Reading	
	May 8, 2018 – Public Services Committee	2 nd Reading	
	May 14, 2018 – City Council	3 rd Reading	

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Petition Signed by Property Owners; Annexation Map; Soils Deferral Request - Submitted 2/23/2018 as the original project submission.

STAFF RECOMMENDATION: Staff recommends conditional approval by the Governing Body with the following two (2) conditions:

1. Correct the title block, per comments by Planning and Development Staff.
2. Survey tie to one boundary course (2 corners) and coordinates from two (2) City Control Monuments, using State Plane Coordinates, per comments by the City Surveyor.

STAFF REPORT

Lot 14, Block 5, Replat Homestead Addition, First Filing Annexation

CASE NUMBER: UDC-18-00069

SUBDIVISION CODE: HAN 01

PREPARED BY: Eric Hammer

OWNER Leader Custom Homes, LLC
255 Storey Boulevard
Cheyenne, WY 82009

AGENT: Casey L. Palma
Steil Surveying Services
1102 W 19th Street
Cheyenne, WY 82001

PROJECT: Lot 14, Block 5, Replat Homestead Addition, First Filing Annexation

DESCRIPTION: Petition to annex 74,198 square feet into the City for residential development.

LOCATION:

1. Legal Description: Lot 14, Block 5, Replat Homestead Addition, First Filing, 1st Filing, Laramie County, Wyoming.
2. Location: Located south of Homestead Avenue, north of the Cheyenne Greenway
3. Address: Unaddressed.

PROPERTY SIZE: 74,198 square feet

CURRENT ZONING: County MR Medium Density Residential

PROPOSED ZONING: City NR-2 Neighborhood Residential – Medium Density

EXISTING USE: Vacant.

PROPOSED USE: Residential, stormwater detention.

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential	MR	City
South	Cheyenne Greenway	P	City
East	Residential	MR	City
West	Vacant	MR	City

EXECUTIVE SUMMARY:

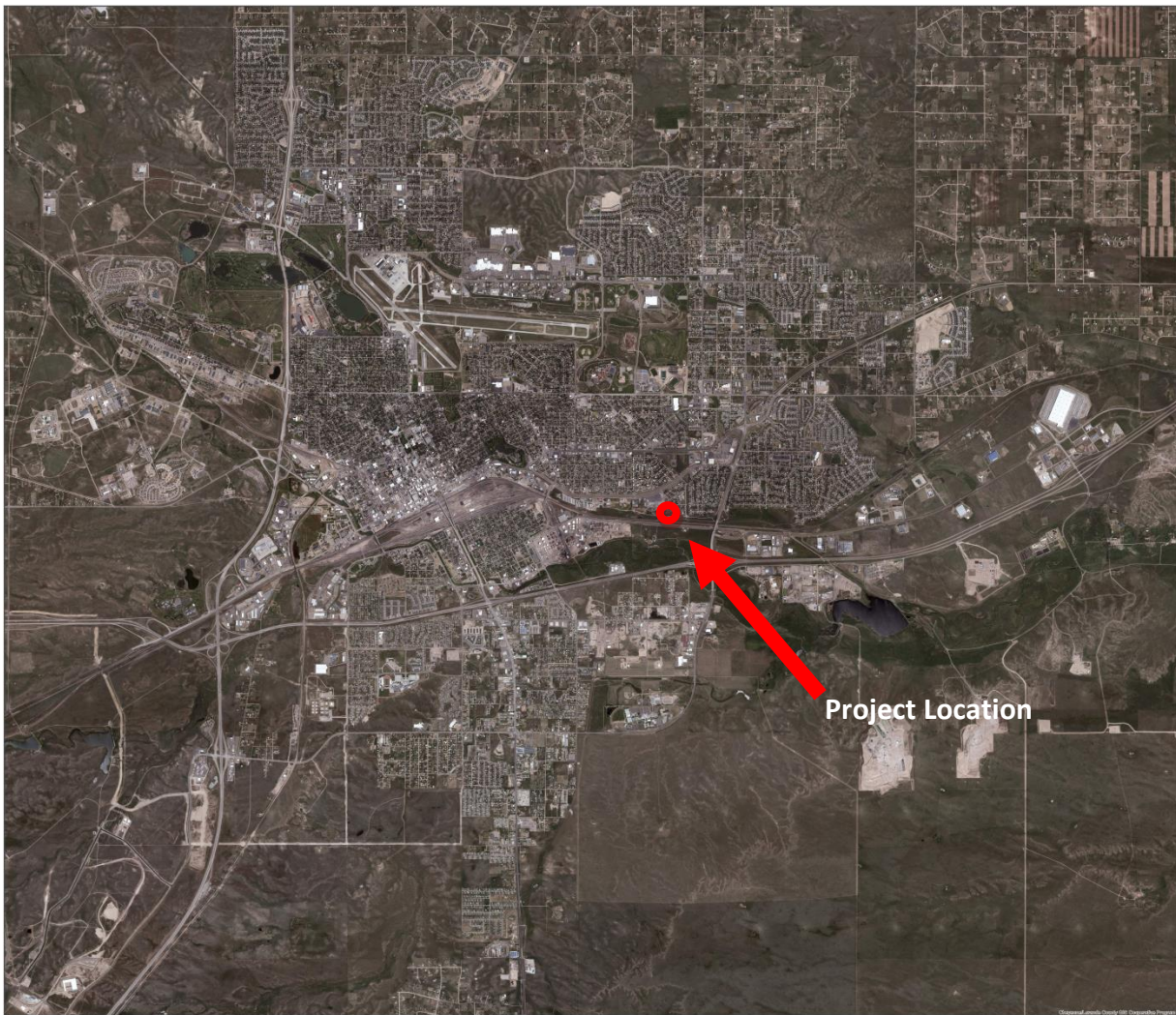
The applicants have proposed annexing the subject property, Lot 14, Block 5, Replat Homestead Addition, First Filing, for residential development purposes. The developer intends to place small detached dwellings on the land, which would front onto the Cheyenne Greenway, which is directly south of the property.

The property is surrounded by annexed land and is a true county pocket. This application is consistent with PlanCheyenne and is supported by the intent of the subject land's Future Land Use Map designation and several of PlanCheyenne's general policies. This annexation meets the review criteria found in State statute as well. The applicants have also submitted a zoning map amendment application for this same land to give the land the City zoning district of NR-2 Neighborhood Residential – Medium Density.

Due to meeting the review criteria found in Wyoming State 15-1-402, staff recommends conditional approval of this annexation with two (2) conditions:

1. Correct the title block to make the annexation recordable, per comments by Planning and Development Staff.
2. Survey tie to one boundary course (2 corners) and coordinates from two (2) City Control Monuments, using State Plane Coordinates, per comments by the City Surveyor.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting the subject property located south of Homestead Avenue, north of the Cheyenne Greenway.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Photograph # 1 –Image of the subject property from the current terminus of Henderson ROW facing southeast.

Source: Planning and Development Department Image



Photograph # 2 – Image of the subject property from the current terminus of Hanson ROW facing southwest.

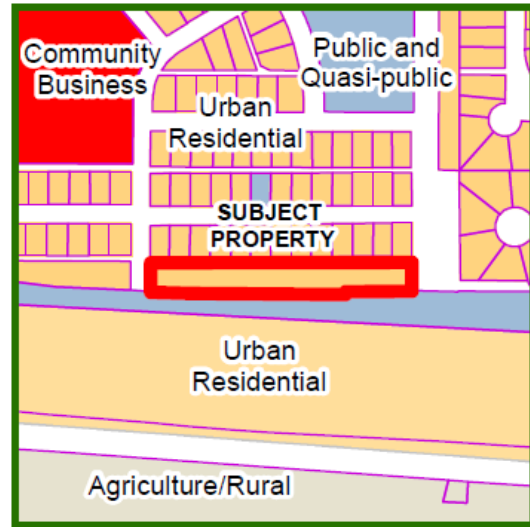
Source: Planning and Development Department Image

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

This annexation is consistent with PlanCheyenne. The subject property is within the Urban Service Boundary (USB) and, per Policy 1.2.B, is encouraged to develop with an urban character. Policy 1.2.A explains that the USB is meant to guide urban growth and distinguish between urban and rural places.

The land is also a true county pocket, as it is 100% surrounded by land that is already annexed into city limits. Therefore, Policy 1.4.B. of PlanCheyenne is supportive of this annexation, as it supports revitalization of a county pocket and underutilized land.

On the future land use map found in PlanCheyenne, the subject land has been designated as Urban Residential. The Urban Residential land use designation includes residential uses as a primary use and includes a wide variety of supporting and complementary uses as secondary uses. The applicant is proposing to develop this property with residential uses, which is congruent with PlanCheyenne.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

This annexation would allow the property to access City water, sanitary sewer, and sanitation service. City police and fire services would be available immediately, which serves the public safety and welfare. As this annexation would allow the property to connect to water and sewer services (after extensions), it would enhance the environmental quality of the land. Therefore, the annexation of this property would increase the health, safety, and welfare of the residents of the Cheyenne area.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This property would constitute a natural, geographic, economic, and social part of the City. The contiguity along all boundaries of the property make the parcel a natural geographic part of the City. The people who will live on this land are a part of the social and economic fabric that is Cheyenne.

LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to property owners would also be available to this location.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The parcel proposed for annexation is 100% contiguous to City limits.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

Electric utility franchises are in place to serve the parcels.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was required to be made to property owners and agencies by 3/9/2018. Staff sent this certified mailing on 3/8/2018.

ANNEXATION REPORT DATA: In compliance with Wyoming State Statute 15-1-402 (c) the following information is herein provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation of this vacant land is approximately \$0.00. Additional on- and off-site improvements may be required with subsequent development actions.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Police and Fire services will be provided immediately upon the recording of the annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Development will require extension of water and sewer services, which are available to the subject property.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for residential units, based upon volume and meter size. Service costs will not be charged until development occurs.
- (v) The current property tax mill levy imposed is 67.17 and projected property tax mill levy imposed by the city is 72.17.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

REVIEW

Board of Public Utilities-BOPU: Board of Public Utilities, Linda Gunter

As per sections 1.16.040, 1.16.050 and 1.16.060 of Chapter 1.16 of the Cheyenne City Code, it is the responsibility of the property Owner/Developer to extend the water and sanitary sewer utilities to and through the boundaries of the property to be served.

The property Owner/Developer shall be required to extend the water and sanitary sewer utilities to the farthest point (or points) of the property being developed. These utility extensions shall be to a point (or points) that are logical for projected future connections by future development projects, as determined by the BOPU and the property Owner/Developer.

All related work and activities associated with the construction of or modifications of the City's water and sanitary sewer systems shall follow the City of Cheyenne and Board of Public Utilities Construction Standards and Specifications and the BOPU's Infrastructure Policies and Design Criteria. **P&D STAFF**

COMMENT: Provided as FYI

City Surveyor: Engineering Department, Jack Studley

1. Boundary data and legal descriptions appear in order. **P&D STAFF COMMENT: Provided as FYI**

2. Survey tie to one boundary course (2 corners) and coordinates from two (2) City Control Monuments, using State Plane Coordinates. Required prior to approval. **P&D STAFF COMMENT: CONDITION #2**

County Planning: Laramie Cty Planning & Devel., Nancy Trimble

As this County property is entirely surrounded by City, we have no objection to the annexation. **P&D STAFF COMMENT: Provided as FYI**

Environmental Health Dept.: Environmental Health Department, Roy Kroeger
201 Area Facilities Management Plan
Laramie County Small Wastewater System Regulations.

GIS shows this property already annexed into the city.

This property can not receive a small wastewater system permit and shall connect to public water and

Lot 14, Block 5, Replat Homestead Addition, First Filing Annexation

UDC-18-00069

sewer. **P&D STAFF COMMENT: Provided as FYI**

Urban Planning: Urban Planning, Eric Hammer

This area is a county pocket and the comprehensive plan supports this annexation, as it is 100% surrounded by city land and is within the urban service boundary. **P&D STAFF COMMENT: Provided as FYI**

Development: Development, Eric Hammer

1. Strike "City of Cheyenne" from the title block **P&D STAFF COMMENT: CONDITION #1**

Please correct the map to be record-able.

2. Since Willow Heights does not exist, the annexation should not be of Willow Heights, it should list out the actual location, as on the recorded plat. **P&D STAFF COMMENT: CONDITION #1**

Reviewers with No Comments

Black Hills Corp: Black Hills Corp, Dustin McKen

City Engineer: Engineering Department, Amy Allen

County Assessor: Laramie County Assessor, Clarice Blanton

County Attorney: Laramie County Attorney, Mark Voss

Engineering - Drainage: Engineering Department, Michael Vinson

Engineering - General: Engineering Department, Mark Escobedo

Engineering Tech/GIS: Engineering Department, Gary Stogsdill

Fire Department: Fire Department, Jim Schamerhorn

MPO: Metro Planning Office (MPO), Nancy Olson

Police: Police Department, Brian Kozak

Public Works: Public Works, Nathan Beauheim

Reviewers Not Responding

CenturyLink: CenturyLink (formerly Qwest), Bob Bates

Charter (formerly Optimum): Charter (formerly Optimum), Bryan VanKirk

County Clerk: Laramie County Clerk, Laura Busey

County Public Works: Laramie County Public Works, Rob Geringer

County Sheriff's Office: Laramie County Sheriff, Danny Glick

Development: Development, Susana Montana

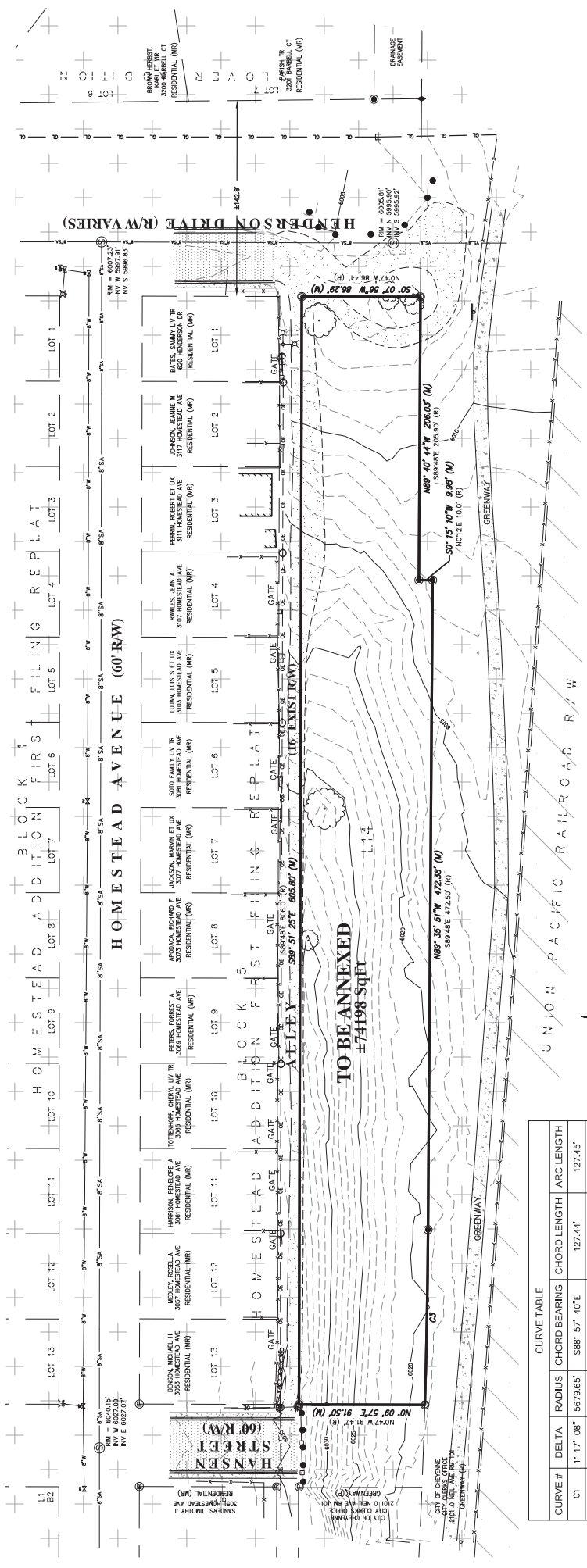
Parks & Recreation: Parks and Recreation Admin, Teresa Moore

CenturyLink: CenturyLink (formerly Qwest), Kimberly Hessel

Other comments: None

Encl: Annexation Map

Cc: Agent, Owner, File

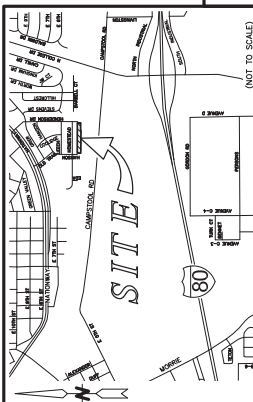


CURVE TABLE			
CURVE #	DELTA	RADIUS	CHORD LENGTH
C1	1° 17' 08"	5679.65'	127.44'
C1(R)		5679.65'	127.57'

ZONE DISTRICT

EXISTING ZONE DISTRICT: (COUNTY) MR - MEDIUM-DENSITY RESIDENTIAL
PROPOSED ZONE DISTRICT: NR-2 (CITY) - NEIGHBORHOOD RESIDENTIAL MEDIUM-DENSITY

VICINITY MAP



LAND DESCRIPTION

All of Lot 14, Block 5, Homestead Addition Replat,
Laramie County, Wyoming.
Containing 1.70 acres, more or less.

LEGEND

FOUND 1 1/2" ALUMINUM CAP STAMPED 'LS 3047'

(M) DENOTES MEASURED DATA THIS SURVEY

(R) DENOTES RECORD DATA

-O- EXISTING UTILITY POLE

EXISTING FIRE HYDRANT

EXISTING CATCH BASIN

EXISTING WATER VALVE

EXISTING WATER MAIN

EXISTING SANITARY SEWER MAIN

ST - EXISTING STORM SEWER LINE

EXISTING LIGHT POLE EXISTING

EXISTING SANITARY SEWER MANHOLE

EXISTING STORM SEWER MANHOLE

EXISTING OVERHEAD ELECTRIC LINES

EXISTING GUARD RAIL

EXISTING BITUMINOUS SURFACE

EXISTING CONCRETE SURFACE

EXISTING GRAVEL SURFACE

CURRENT CITY OF CHEYENNE INCORPORATED LANDS

CURRENTLY UNINCORPORATED LANDS

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

**ANNEXATION MAP
FOR
WILLOW HEIGHTS**

LOT 14, BLOCK 5
HOMESTEAD ADDITION, FIRST FILING REPLAT
CITY OF CHEYENNE

SITUATED IN THE N1/2NE1/4 SECTION 4,
T.13N., R.66W., 6th P.M.,
LARAMIE COUNTY, WYOMING

PREPARED FEBRUARY, 2018

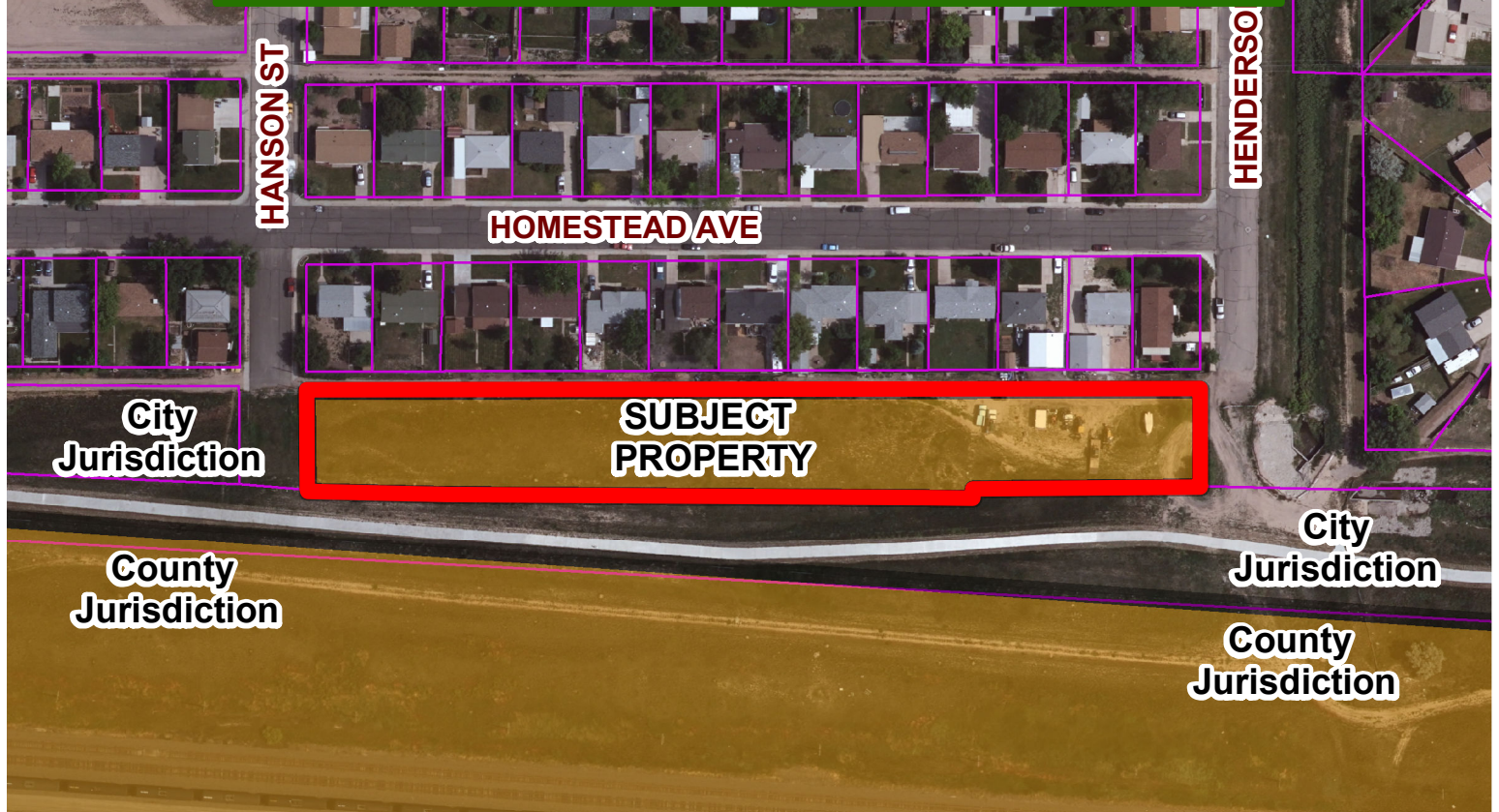


STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 1916 ST. CHEYENNE, WY. 82001 o (307) 634-7973
756 GILCHRIST ST. WHEATLAND, WY. 82201 o (307) 322-9789
www.SteelSurvey.com o info@SteelSurvey.com

FILING RECORD

2018 DWG\18084 GANSON HOMESTEAD ADDITION\18084 WILLOW HEIGHTS.dwg
REVISED: 02/27/2018
© COPYRIGHT 2018 STEEL SURVEYING SERVICES, LLC ALL RIGHTS RESERVED

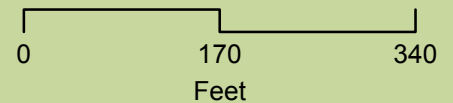
Lot 14, Block 5 Homestead Addition, 1st Filing Replat Annexation and Zone Change



UDC-18-00069
Annexation
UDC-18-00070
Zone Change

Applicant: Leader Custom Homes, LLC
Agent: Steil Surveying
307-634-7273

Scale applies to
above map only



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

